

COMPLAINT NO.1061-19-0229

IN THE MATTER OF

CYNTHIA CATHERINE KAY

§ **BEFORE THE TEXAS BEHAVIORAL**
§ **HEALTH EXECUTIVE COUNCIL**
§
§ **THE TEXAS STATE BOARD**
§ **OF EXAMINERS OF**
§ **PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **Cynthia Catherine Kay** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#60994) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. On or about January 2019, Respondent failed to obtain a signed informed consent and a signed written receipt of information prior to providing services.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 TAC §681.41(e) as was in effect on July 16, 2017 to thru the present.
4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation. By entering into this Agreed Order, Respondent does not admit the foregoing Findings of Fact or Conclusions of Law, but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent's license is hereby REPRIMANDED
2. Respondent is assessed and shall pay, within sixty (60) days of the date this order is ratified, an administrative penalty in the total amount of \$500.00; of which \$150.00 represents administrative costs and \$350.00 represents administrative penalty.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:



Cynthia Catherine Kay
7723 Wayfarer
Houston, Texas 77075

DATE SIGNED: 2/21/2022

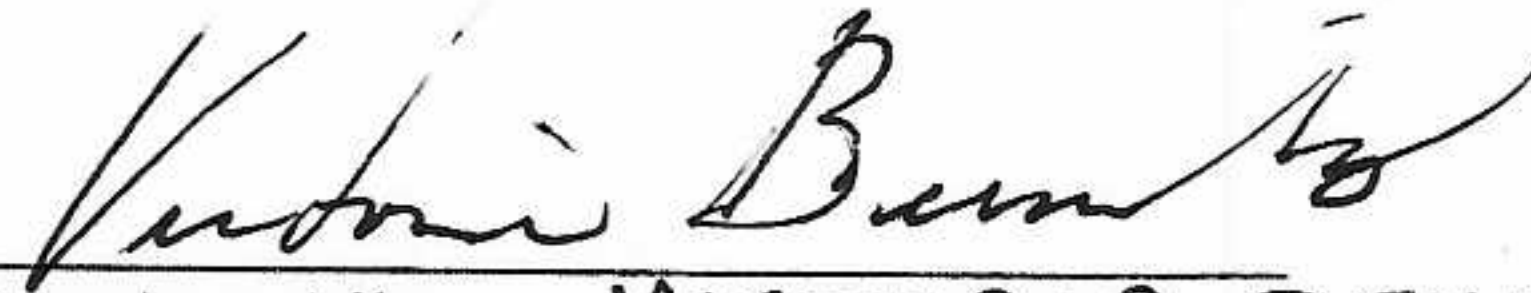
Leanna Marchand

2/21/22

Attorney for Respondent
Leanna Marchand

APPROVED, RATIFIED, AND ENTERED THIS 23 DAY OF February, 2022.

FOR THE STAFF OF THE COUNCIL:



~~Rae-Ann Allong~~ VICTORIA BENITEZ
Texas Bar No. ~~01100400~~ 02134350
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 2-23-22



Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council

COMPLAINT NO. 2022-00093

IN THE MATTER OF

JOHN DAKIN

§ **BEFORE THE TEXAS BEHAVIORAL**
§ **HEALTH EXECUTIVE COUNCIL**
§
§ **THE TEXAS STATE BOARD**
§ **OF EXAMINERS OF**
§ **MARRIAGE AND FAMILY**
§ **THERAPISTS**

AGREED ORDER FOR ELIGIBILITY

Pursuant to its authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order for Eligibility with the following Findings of Fact, Conclusions of Law, and Order of the Texas Behavioral Health Executive Council ("Council"), which have been approved and accepted by John Dakin ("Respondent").

FINDINGS OF FACT

1. Respondent is currently an applicant for licensure as a marriage and family therapist and is, therefore, subject to the jurisdiction of the Council under the Act.
2. From on or about January 31, 2020 to present, Respondent has practiced with an expired license.

CONCLUSIONS OF LAW

1. Respondent voluntarily submitted an application to the Council and, therefore, is bound by the provisions of Chapters 502 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 35 and 41.
2. Respondent's unlicensed practice constitutes a violation of Texas Occupations Code §502.251(a), (b), and (c).
3. Based on the above-stated Findings of Fact, Respondent's application is subject to abatement for up to 180 days, pursuant to Council Rule §882.10, before the Council must render a decision upon the application.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Respondent shall, within ninety (90) days of the effective date of this order and prior to the issuance of a license, do the following:

1. Respondent is assessed and shall pay an administrative penalty in the total amount of \$1,500, of which \$1,400 represents administrative costs and \$100 represents administrative penalty.

In the event Respondent fails to comply with any term of this order required to be completed prior to licensure, Respondent's license application shall be denied, without further hearings, informal settlement procedures, or any right of appeal for judicial review, and the Council shall not consider a subsequent application for licensure from Respondent, and Respondent agrees not to apply for any new license from the Council for one year from the effective date of this order.

WARNING

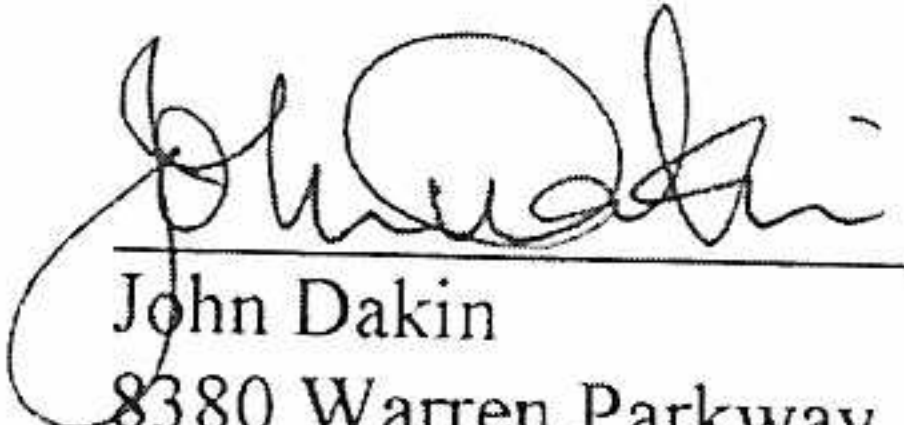
RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying licensing/professional/investigative file, Respondent has freely and voluntarily waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

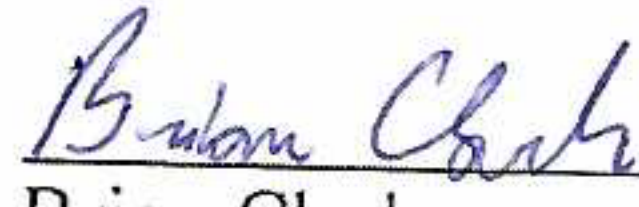
THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:


John Dakin
8380 Warren Parkway, Suite 602
Frisco, Texas 75034

DATE SIGNED: 2/15/22

FOR THE STAFF OF THE COUNCIL:


Brian Clark
Texas Bar No. 24099457
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 2/16/22

APPROVED, RATIFIED, AND ENTERED THIS 17 DAY OF February, 2022.


Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council

COMPLAINT NO. 2022-00091

IN THE MATTER OF

ALYSHA LOMBA

§ **BEFORE THE TEXAS BEHAVIORAL**
§ **HEALTH EXECUTIVE COUNCIL**
§
§ **THE TEXAS STATE BOARD OF**
§ **EXAMINERS OF PSYCHOLOGISTS**

AGREED ORDER FOR ELIGIBILITY

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order for Eligibility with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **ALYSHA LOMBA** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is currently an applicant for licensure as a Licensed Specialist in School Psychology and is, therefore, subject to the jurisdiction of the Council under the Act.
2. Respondent practiced without a license after she allowed her license to expire on 7/16/2021.

CONCLUSIONS OF LAW

1. Respondent voluntarily submitted an application to the Council and, therefore, is bound by the provisions of the Acts (Tex. Occ. Code Chs. 501 and 507) and the Rules of the Council (22 Tex. Admin. Code pts. 21 and 41).
2. Respondent's practice without a license constitutes a violation of Council Rules 882.23(a), 882.21(g), and Texas Occupation Code §501.401(5)(B).
3. Based on the above-stated Findings of Fact, Respondent's application is subject to abatement for up to 180 days, pursuant to Council Rule §882.10, before the Council must render a decision upon the application.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Respondent shall, within ninety (90) days of the effective date of this order and prior to the issuance of a license, do the following:

1. Respondent is hereby REPRIMANDED.
2. Respondent shall complete and submit proof of completion of three (3) hours of professional development relating to professional ethics or Council rules, or any combination thereof. This professional development is in addition to the professional development hours required for license renewal. Respondent will pay all costs of the coursework.
3. Respondent is assessed, and shall pay an administrative penalty in the total amount of \$1000, of which \$900 represents administrative costs and \$100 represents administrative penalty.

In the event Respondent fails to comply with any term of this order required to be completed prior to licensure, Respondent's license application shall be denied, without further hearings, informal settlement procedures, or any right of appeal for judicial review, and the Council shall not consider a subsequent application for licensure from Respondent, and Respondent agrees not to apply for any new license from the Council for one year from the effective date of this order.

WARNING

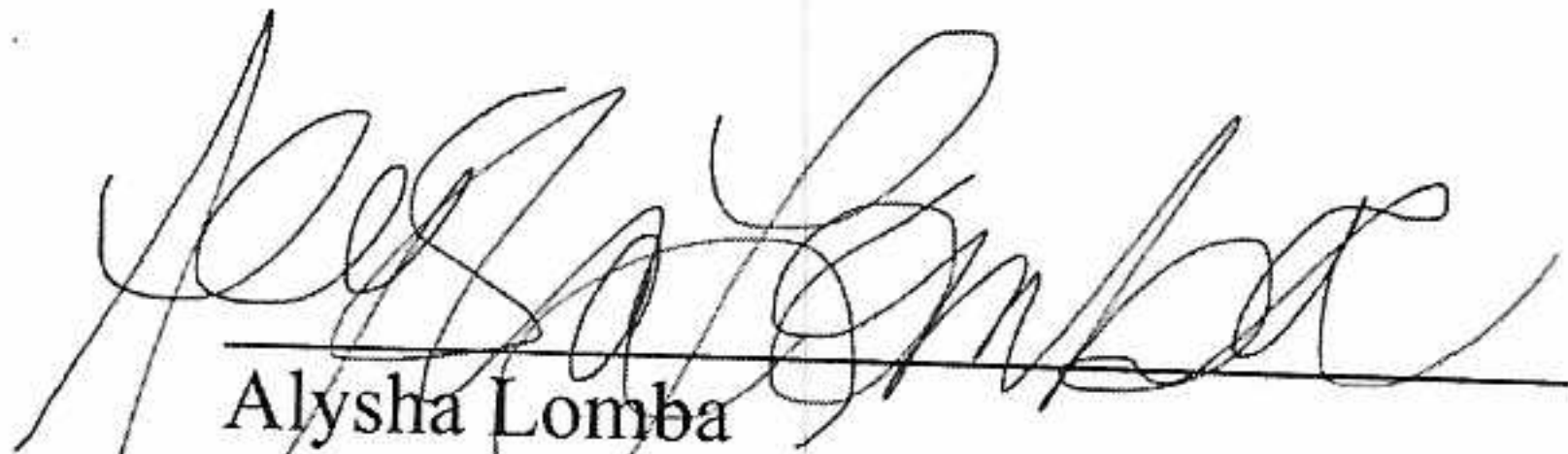
RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying licensing/professional/investigative file, Respondent has freely and voluntarily waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Tex. Gov't Code Ann., Ch. 2001, in exchange for the conditions set out in this Agreed Order.

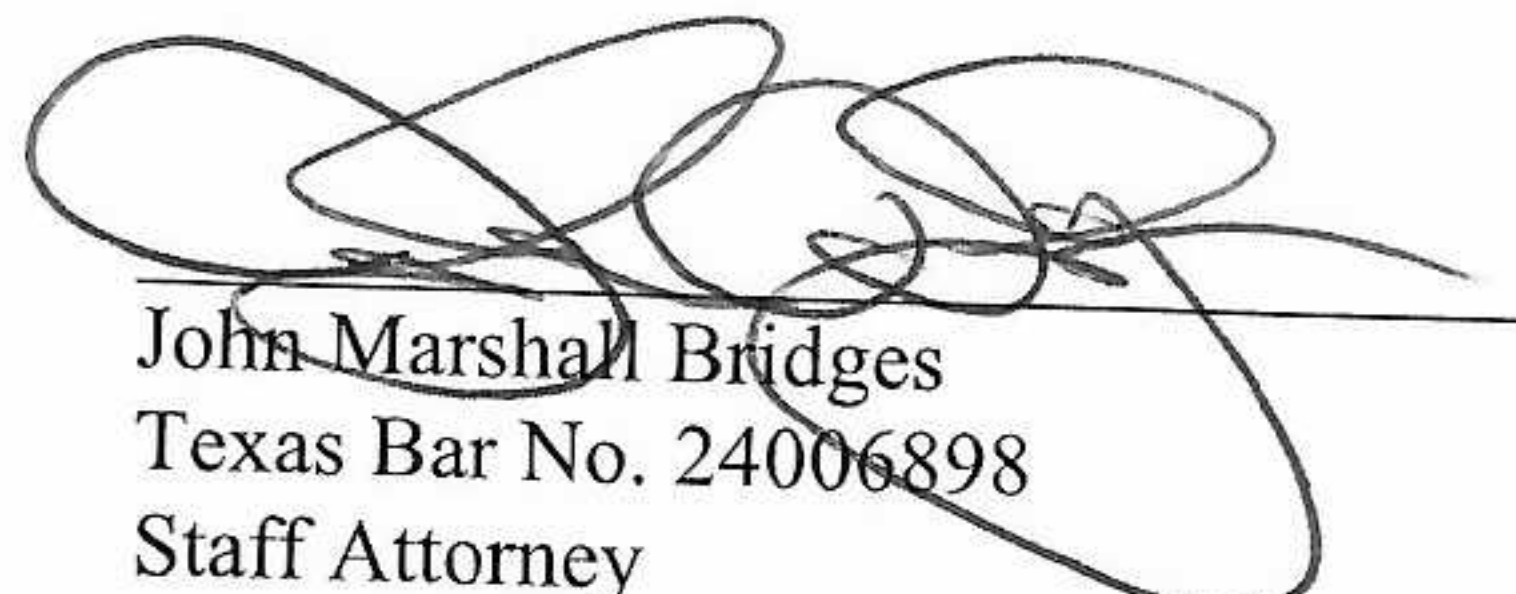
THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:


Alysha Lomba
7807 Bent Branch
San Antonio, TX 78250

DATE SIGNED: 01/20/2022

FOR THE STAFF OF THE BOARD:


John Marshall Bridges
Texas Bar No. 24006898
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 25 Jan 2022

APPROVED, RATIFIED, AND ENTERED THIS 28th DAY OF January, 20 22.


Darrel D. Spinks
Executive Director, Texas Behavioral Health
Executive Council